

2:00 PM

LINE 12

25-CLJ-10141 WELLS FARGO BANK, N.A. VS LUISA P ECHANE

WELLS FARGO BANK, N.A.
LUISA P ECHANE

JON O. BLANDA
PAUL EUM

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

The court DENIES without prejudice plaintiff Wells Fargo Bank N.A.'s unopposed motion for an order deeming the truth of the matters specified in plaintiff's request for admissions for failure to provide proper notice to defendant Luisa P. Echane.

In the notice of motion, plaintiff put the date of June 30, 2026 as the hearing date. Then the clerk's office changed the hearing date to July 21, 2026. The court file shows a proof of service filed April 20, 2026, the same date of the filing but endorsed filed-documents are not returned the same day they are filed. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.

2:00 PM

LINE 13

26-CIV-00808

TREMIN CORPORATION VS. MICHAEL HARBOUR, ET AL.

TREMIN CORPORATION
MICHAEL HARBOUR

PATRICK J. WHITEHORN
CHARLES S. BRONITSKY

MOTION TO REMOVE MECHANIC'S LIEN

CONTINUED FROM 6/30/2026

TENTATIVE RULING:

The Motion to Remove Mechanic's Lien by Defendants and Cross-Complainants Michael Harbour and Andres Mediavilla ("Defendants") is DENIED.

As stated in the court's prior June 30, 2026 Minute Order, Plaintiff Tremin Corporation dba Bay West Builders ("Plaintiff"), a contractor, brings this action seeking payment for work performed on a home improvement contract for real property owned by Defendants. The Complaint alleges that the parties entered into an oral agreement for this work on or about December 9, 2021. (Complaint, ¶ 9.) On November 5, 2025, Plaintiff recorded a Notice and Claim of Mechanics' Lien against the property. (Complaint, Exh. B.) The Complaint includes a cause of action to foreclose on the mechanic's lien. Defendants bring this Motion seeking to remove the mechanic's lien.

"A motion to remove a mechanic's lien is recognized as a device that allows the property owner to obtain speedy relief from an unjustified lien or a lien of an unjustified amount without waiting for trial on the action to foreclose the lien. (*Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 318 (*Howard S. Wright*), citing *Lambert v. Superior Court* (1991) 228 Cal.App.3d 383.) The inquiry on a motion to remove a mechanic's lien is limited to the probable validity of the lien. (*Id.*, citing *Lambert, supra* at p. 387.) The determination is not the ultimate merit of the contractor's claim, but whether the contractor should be entitled to retain the security of the mechanic's lien pending resolution of the matter. (*Cal. Sierra Construction, Inc. v. Comerica Bank* (2012) 206 Cal.App.4th 841, 850.) The granting of a motion to remove a mechanic's lien is essentially a judgment on the underlying foreclosure action that no lien exists and removes the lien from the public records upon recordation of the judgment. (*Howard S. Wright, supra*, 106 Cal.App.4th at p. 318.)

Defendants raised two arguments in support of this Motion. The first argument is that the agreement does not comply with Business and Professions Code section 7159 and therefore it is illegal. The second argument is that the lien is invalid because it was not timely recorded. The court previously denied this Motion as to Defendants' second argument that the lien is invalid because it was not timely recorded, and that ruling was not contested. The court, however, requested supplemental briefing as to the first argument.
